

[Marketing Services](#)

[Virtual Event Services](#)

[About Us](#)

[Groups](#)

[Agency@1105](#)

[Prophyts](#)

[TDWI](#)

[Converge360](#)

[Infrastructure Solutions Group](#)

[Locations](#)

[From Our CEO](#)

[Our Executives](#)

[Latest News](#)

[Upcoming Events](#)

[Careers &](#)

[Culture](#)

[Why Work for 1105?](#)

[Our Philosophy](#)

[Apply Today!](#)

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[Media Kits](#)

[Ad Specs](#)

[List Rental](#)

[Reprints](#)

[Privacy Policy](#)

[Cookie Policy](#)

[Terms of Service](#)

[Contact Us](#)

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You are solely responsible for maintaining the confidentiality of any user name and password you use to access the Sites, and are fully responsible for all activities that occur under your password or account.

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(b) does not cause personal injury (including defamation, insults, abuse, etc.) or constitute an invasion of privacy;

(c) is not contrary to public policy, child protection and privacy laws, or accepted moral standards;

(d) contains no child pornography, dangerous or illegal acts (including, but not limited to, incitement to violence, animal abuse or drug abuse);

(e) contains no sexually explicit content (including but not limited to intercourse, masturbation, sadistic or masochistic abuse, sexually explicit depiction of male or female genitalia);

(f) is not per se illegal;

(g) does not contain or constitute unsolicited or unauthorized advertising, promotional materials, "junk mail," "spam," "chain letters," "pyramid schemes," or any other form of solicitation;

(h) does not upload, post, email, transmit or otherwise make available any material that contains software viruses or any other computer code, files or programs designed to interrupt, destroy or limit the functionality of any computer software or hardware or telecommunications equipment;

(i) does not interfere with or disrupt the Sites or servers or networks connected to the Sites, or disobey any requirements, procedures, policies or regulations of networks connected to the Sites.

and

(j) does not provide material support or resources (or to conceal or disguise the nature, location, source, or ownership of material support or resources) to any organization(s) designated by the United States government as a foreign terrorist organization pursuant to Â§ 219 of the Immigration and Nationality Act.

By uploading or disseminating images to or through the Sites, you warrant that you are not uploading any infringing material and expressly warrant that you have all necessary rights and/or authorizations from the copyright owner(s).

You also agree not to post or transmit any unlawful, harmful, threatening, abusive, harassing, defamatory, vulgar, obscene, profane, hateful, racially, ethically or otherwise objectionable content of any kind, including but not limited to, any content which encourages conduct that would constitute a criminal offense, violate the copyrights, trademarks, services marks or similar intellectual property rights or other rights, including invasion of privacy or rights of publicity, of others.

To be clear, 1105 Media neither wants nor tolerates such content.

If Your Content contains such material, do not upload it to the Sites.

Failure to comply with these provisions will result in Your Content being removed and/or your account being deactivated without prior notice.

In addition, 1105 Media reserves the right to report any violation of these provisions to applicable legal authorities and you may be personally liable to criminal sanctions applicable to the content in question (fines and/or imprisonment), in addition to any applicable civil damages. Copyright Notifications 1105 Media does not tolerate copyright infringing activities and infringement of intellectual property rights on its Sites, and will remove content uploaded by users (including Your Content) if properly notified that such content infringes on another's intellectual property rights.

1105 Media reserves the right also to terminate a user's account, if a user is determined to be a repeat infringer.

Minimum Age.

Entity Users Children under the age of 13 are not permitted to register with 1105 Media.

It is 1105 Media's policy not to collect any information from anyone under the age of 13.

IF YOU ARE UNDER 13 YEARS OF AGE, DO NOT USE OR ACCESS THE SITES AT ANY TIME OR IN ANY MANNER.

If you are the parent or legal guardian of a child under 13, and that child has somehow registered with any of the Sites, please send an email to privacy@1105media.com to cancel your child's registration.

In the email message, please provide your full name and address, your child's full name and address, your relationship to the child, your daytime and evening telephone numbers, your email address and a copy of your child's birth certificate or a signed statement that you are the child's parent or legal guardian.

1105 Media reserves the right to seek additional information to verify your identity and status in relation to the child.

1105 Media will use this information only to verify that you are the child's parent or legal guardian and for no other purposes.

If you are not an individual, you warrant that you have all necessary corporate or equivalent authority and power to agree to the Terms, which you agree shall be binding on the corporation, partnership, association or other entity in whose name you are registering as a user and establishing an account. Links As a convenience to you, the Sites may contain links to websites operated by other entities (a "Linked Site").

If you decide to visit any Linked Site, you do so at your own risk and it is your responsibility to take all protective measures to guard against viruses or other destructive elements.

1105 Media has no responsibility to you with respect to any Linked Site and no Linked Site, regardless of the linking form (e.g.

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Waiver of Jury Trial You agree that 1105 Media shall be deemed to be a passive website that is based solely in California and over which personal jurisdiction cannot be obtained, either specific or general, in any jurisdiction other than state or federal court in California.

You agree that any dispute between you and 1105 Media arising out of or relating in any way to these Terms or your use of the Sites shall be interpreted in accordance with the laws of the State of California without reference to its conflicts of laws and shall in all respects be governed, construed, applied, and enforced in accordance with the laws of California.

You also agree that any claim or dispute between you and 1105 Media shall be decided exclusively by a court of competent jurisdiction located in California.

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You agree that, when in the future you click on "I agree," "I consent," "Submit," or other similarly worded "button" or entry field with your mouse, keystroke or other computer device, your agreement or consent will be legally binding and enforceable and the legal equivalent of your handwritten signature. Amendments/Revisions 1105 Media may amend or revise the Terms or any other policy of 1105 Media at any time and you agree to be bound by such revised Terms or policy.

Any such amendment or revisions will become effective upon the date it is first posted to this site.

It is your responsibility to return to the Sites from time to time to review the most current Terms and other 1105 Media policies.

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A printed version of the Terms and of any notice given in electronic form shall be admissible in judicial or administrative proceedings based upon or relating to the Terms to the same extent and subject to the same conditions as other business documents and record originally generated and maintained in printed form.

If, for any reason, a court of competent jurisdiction finds any provision of the Terms or any portion thereof, to be unenforceable, that provision shall be enforced to the maximum extent permissible so as to affect the intent of the Terms, and the remainder of these Terms shall continue in full force and effect.

No waiver by either party of any breach or default hereunder shall be deemed to be a waiver of any preceding or subsequent breach or default.